

TENTATIVE RULINGS for LAW and MOTION

April 29, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven
Telephone number for the clerk in Department Fourteen

(530) 406-6843
(530) 406-6800

TENTATIVE RULING

Case: **Portfolio Recovery Associates, LLC v. Beltran**
Case No. CV2025-1114

Hearing Date: **April 29, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Portfolio Recovery Associates, LLC's unopposed motion to enter judgment pursuant to terms of settlement agreement is **GRANTED**. (Code Civ. Proc., § 664.6; McGovern decl., ¶¶ 2-10, Exhibits A & B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, the Court will execute the proposed order and judgment, lodged on March 27, 2026.

TENTATIVE RULING

Case: **Rosales v. Mariani Nut Company**
 Case No. CV2025-2290

Hearing Date: **April 29, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Mariani Nut Company's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's unopposed motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Stenson Decl.) "A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8; see also *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 380-381.) Defendant has established the existence of an arbitration agreement between defendant and plaintiff Andres Rosales. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; *Jenks, supra*, 243 Cal.App.4th at p. 8; Stenson Decl., ¶¶ 5-13, Exhs. 1-6.) As this motion is unopposed, plaintiff has failed to show that a defense exists, which would prevent the Court from compelling arbitration. (See *Jenks, supra*, Cal.App.4th at p. 8.)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vaidya v. Dhesi**
 Case No. CV2026-0221

Hearing Date: **April 29, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, and Blueberry Trading LLC's demurrer to complaint is **CONTINUED** to **June 17, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: Vorhees v. Sequeira
Case No. CV2026-0729

Hearing Date: April 29, 2026 **Department Eleven** **9:00 a.m.**

Demurrer:

Respondent Martha Sequeira and real party County of Yolo's (collectively, the "County") request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibit E, the Court declines to take judicial notice of the other documents because they are irrelevant to the resolution of the County's demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

The County's demurrer to plaintiff James Patrick Vorhees' petition is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) First, the petition does not allege how plaintiff is beneficially interested in the relief sought. (Code Civ. Proc., § 1086; *Ex parte Levitt* (1937) 302 U.S. 633; *Save the Plastic Bag Coalition v. City of Manhattan Beach* (2011) 52 Cal.4th 155, 165.) Second, while the petition requests Sequeira's compliance with S.B. 60, this bill never became law. (The County's RJN, Exhibit E.) The Court does not permit leave to amend as there is no reasonable possibility that plaintiff can amend his petition to state these claims against the County. (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Compelling client records:

Plaintiff James Patrick Vorhees' motion for order compelling former attorney to surrender client records and property is **DENIED**. First, plaintiff did not timely file this motion, based on the April 21, 2026, hearing date. (Code Civ. Proc., § 1005, subd. (b).) Second, although plaintiff states that he filed a memorandum of points and authorities with his motion, plaintiff did not file a supporting memorandum. (Cal. Rules of Court, rule 3.1113(a).) Therefore, the Court construes "the absence of a memorandum as an admission that the motion...is not meritorious and cause for its denial." (*Ibid.*)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Reviewing hearing:

As the Court is sustaining the County's demurrer without leave to amend, the review hearing is **VACATED AS MOOT.**